

Deep Dive | IRS Counsel

Remote
June 2019

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4. A few interesting IRS Counsel facts

Working Together | IRS Counsel & The USTC

How USTC Cases Move Through the IRS

1. Data from the USTC arrives at the National Office in batches of PDFs
2. The National Office manually transcribes data from PDFs into their internal systems
3. The National Office produces a daily Routing Report for each Field Office which lists each new case and filing within their jurisdiction (according to Place of Trial)
4. Cases are assigned to IRS Attorneys by caseload (40-60 cases), subject matter specialty, and experience; paralegals often handle small cases
5. IRS Counsel support staff manage the caseload on a day-to-day basis by:
 - performing research
 - tracking deadlines
 - preparing and filing documents
 - collaborating with the IRS Appeals Office
 - redacting evidence
 - maintaining physical and digital case files
6. Filings are mostly submitted via the USTC's eFiling system, some must be sent by mail
7. IRS Attorneys appear in Court to represent the IRS in Trial
8. Closed cases are archived but may be used for research at a later date

Findings | Participant Feedback

Current Experience with eFiling System

The current eFiling system works but is described as bulky and time consuming. Participants describe frustration with having to navigate too many screens, and the time it takes to file a single document. Participants asked for:

- An easy to use electronic filing form with fewer steps / pages

Streamlined Login

A Field Office's Counsel support staff process the bulk of filings through the eFiling system under the login credentials of a case's Responsible Attorney. Although they try to organize their work by Attorney to limit account hopping, they must still log in and out of numerous accounts on a daily basis. Presently, they click on a link in their system to access the eFiling login page, then enter the Attorney's login credentials on separate pages. Support staff strongly requested streamlining the login procedure. Suggestions included:

- Limiting the login process to one page
- Saving partial login information
- Account switching

Streamlined Login

UX Recommendations

~~IRS support staff, including admins and paralegals, file almost all of the IRS' documents. Their interaction with the eFiling system is constant and challenging to organize. Significantly improving their filing experience would dramatically improve the IRS' overall interaction with the US Tax Court. We recommend:~~

- ~~● Providing logins for support staff to eliminate account hopping~~
- ~~● Enabling support accounts to file on behalf of one or more Attorneys~~
- ~~● Giving support accounts a filterable list of their Attorneys' cases~~

(Will not be considered for MVP; highly unlikely Post-MVP)

Dashboard

When asked what they would like to see on their personal dashboard upon logging into the system, suggestions included:

- Assigned Cases list for Staff Attorneys and Managing Attorneys
- All Cases (Field Office) list and who is assigned for Managing Attorneys
- Aggregated list of upcoming due dates / deadlines for all cases
- Next due date for each case
- Most recent filing for each case (newest on top)
- A calendar of upcoming trial sessions for a user's Field Office
- Access to every document filed on an assigned case
- Access to USTC Rules
- Access to a library of sample orders / documents which please the Court
- Access to a list of Documents, such as the one provided in the eFiling Guide
- Access to the eFiling Guide

Mass Filing

Participants described a common use case of needing to submit 15-20 Answers in one sitting, and how time consuming it can be with the USTC's current eFiling system, where they must submit filings one-at-a-time. They referred to the Bankruptcy Court's electronic filing system as a good example of what works well for them - increasing their filing volume and decreasing ergonomic effort. The IRS would like to:

- Select a number of separate document types, enter the docket number for each document, verify the case is correct by the case name, and select file to upload for each document
- Print or download a confirmation of the filing transaction listing each document and its pertinent filing information

Electronic Decisions

At present, the only documents the IRS cannot file electronically are decisions. The IRS would strongly prefer to be able to submit decisions electronically. This will significantly improve casework efficiency and cut down on mail room expenses. Participants suggested:

- Allowing IRS Attorneys to certify that all required signatures were obtained

Electronic Signatures

Participants also enjoy the Bankruptcy Court's electronic signature capability for Attorneys and Judges with a digital "holding area" from which unsigned documents can be signed. They cite it as being efficient and helpful, lending to positive interaction with the Judges at the Bankruptcy Court. They would like to see:

- Electronic signatures for Attorneys
- A way to indicate documents are unsigned

Filing Support

Document Selection

Participants expressed frustration in deciding which document type, in terms of its content, is most appropriate for their filing. The Court's document names can be unintuitive or confusing. Participants would like:

- The ability to search for document types by content keywords
- Type-ahead document selection
- Elimination of the confusing event code box

Other Document Filing

- More guidance for when and how to Lodge a document
- Ability to upload large files of 300 pages or more (e.g. briefs, expert reports, stipulations of fact)

Notifications

Managing Attorneys often have 200 or more cases in their caseload at any given time and are bombarded throughout the day by eFiling notification emails from the Court.

Participants would like to have the ability to set preferences for their notifications, such as:

- Add one or more notification delegates
- Turn notifications on/off for their own filing activity
- Choose individual notifications or daily digest
- Turn notifications on/off by case type / procedure
- Override other settings for urgent notifications (rarely needed)

Deadlines

Deadlines are amongst the most critical information received from the USTC. There is a high risk of failure if deadlines are missed or entered incorrectly. Deadlines are often imbedded in the content of PDF documents, so they must be manually entered into the IRS systems or digitally extracted by makeshift data scrapers. Participants expressed a strong desire for:

- Data sharing and/or automated reporting from the Court to help the IRS capture and track (using their internal system) a multitude of deadlines as they come, change, and go across their caseload
- Front and center information on upcoming deadlines in the new eFiling system

“We live by the deadlines.”

Supporting Judges

Participants described a interest in understanding each Judge in order to facilitate a smooth and productive case cycle. It is typical for the IRS Attorneys to keep personal notes about Judges' preferences, including their preferred procedures, document structure, and presence of laptops in Court. They also keep a watchful eye on requests from the Court to ensure that urgent requests from the Judges are prioritized. The IRS would welcome:

- Specific preferences and procedures specified by each Judge, perhaps as part of the Trial Session information
- An indicator in the system (or data) if a filing is not routine; such as filings in which a Judge wants something urgently ("Order to Show Cause")

"If it matters to the Judge, it matters to us."

Data Retrieval

Data drives the IRS Counsel's internal processes. Participants expressed frustration with finding certain critical data in the Court's PDFs and eFiling system. Some Field Offices use data scrapers to pull information from PDFs while others enter data by hand. They strongly requested a way to view and import critical data points to help them improve the timeliness and efficiency of their caseload processing, including:

- All petitioners' most recent service addresses and preferences
- All counsel in a case including name, bar number, and service address
- Documents previously filed on a case by the IRS
- Indication if a taxpayer is a minor (child) for redaction purposes
- Names, broken down into [first] [middle] [last] fields
- Order dates where applicable, so deadlines can be tracked
- Deadlines for internal reporting
- Document type for documents served by the Court (e.g. Order, Motion)
- Archived cases by keyword search, for the purposes of research

Data Sharing

Participants would strongly prefer to receive raw data from the USTC in addition to PDF filings. At present, all PDFs require manual transcription processing which is susceptible to error. Due to the time consuming transcription, new PDFs may first appear in reports up to a week after they were served by the Court. The IRS recognizes the increased risk to casework posed by inaccurate and delayed data, and would like:

- To receive highly impactful data directly from the USTC via an API, CSV file, or other text format which can be imported into their system
- Access to helpful USTC reports
- Case lists
- Trial docket information

Automation

Participants described how they receive useful case lists from the Bankruptcy Court. From the case list, the IRS' systems can cross reference other cases by Taxpayer Identification Number (SSN, EIN, etc.) and file a Proof of Claim automatically. By integrating data sharing and automation, 80-90% of Bankruptcy cases are never seen by a human before they are filed. The IRS would like to establish similar opportunities to automate processes which can dramatically improve the efficiency and accuracy of their interactions with the USTC.

They're requesting:

- Text-based, exportable reports or a data feed which can be imported into IRS systems for cross-referencing and establishment of automated processing

"The more automated and electronic -- the better."

Summary | UX Recommendations

Planned for MVP

Accounts

- ✓ Limiting the login process to one page
- ✓ Saving partial login information (in the browser)

Dashboard

- ✓ Assigned Cases list for Staff Attorneys and Managing Attorneys

Electronic Filing

- ✓ Easy to use electronic filing form with fewer steps / pages
- ✓ The ability to search for document types by content keywords
- ✓ Type-ahead document selection
- ✓ Elimination of the confusing event code box
- ✓ Ability to upload large files of 300 pages or more

Planned for MVP

Case Information

- ✓ Access to every document filed on an assigned case
- ✓ Documents previously filed on a case by the IRS
- ✓ All petitioners' most recent service addresses and preferences
- ✓ All counsel in a case including name, bar number, and service address

Recommended for MVP

Dashboard

- + Show deadlines associated with specific cases or documents in the context of a case (e.g. on the case detail page). (This would be a HUGE win for them and also benefit the court in terms of IRS ability to manage and meet deadlines - could be useful for pro se and practitioners as well if we introduce deadlines outside of court users.) (Possibly related to [#534](#))
- + ~~Indicator when a filing is not routine; urgent request from Judge (could be simple as flagging as "high priority")~~ (addressed with line item above, no additional priority)
- + Links to helpful resources (e.g. USTC Rules and updated eFiling Guide; list of documents, such as the one provided in the eFiling Guide or the new browse document list view; helpful reports, such as for deadlines and case activity; case lists, e.g. by field office, user, etc.). (These could be helpful links in a dashboard sidebar.) (Possibly related to [#534](#))

Recommended for MVP

Electronic Filing

- ✓ Electronic filing of decisions (already in MVP)

Notifications (dependent on the dev lift - giant pain point)

- ✗ Add one or more notification delegates (Not MVP, potential Post-MVP)
- ✗ Turn notifications on/off for their own filing activity (Not MVP, potential Post-MVP)
- ✗ Choose individual notifications or daily digest (Not MVP, potential Post-MVP)

Case Information

- ✓ Indication if a taxpayer is a minor (child) for redaction purposes (already in Caption)
- + Show deadline metadata / order dates for deadline tracking (e.g. Next 5-10 Deadlines list on the dashboard, all deadlines report, case activity report) ([Related to #461](#))

Consideration for Post-MVP

Support Accounts

- ✗ ~~Account switching or providing logins for support staff~~ (Unlikely Post-MVP)
- ✗ ~~Aggregate list of their Attorneys' cases, filterable by Attorney~~ (Unlikely Post-MVP)
- ✗ ~~Enabling support accounts to file for one or more Attorneys~~ (Unlikely Post-MVP)

Dashboard

- ✗ All Cases (Field Office) list and who is assigned for Managing Attorneys
- ✗ Most recent filing for each case (newest on top)
- ✗ A calendar of upcoming trial sessions for an Attorney's Field Office (concept of users belonging to a specific office group)

Case Information

- ✗ Search for key strings within documents in cases for research purposes

Consideration for Post-MVP

Electronic Filing

- ✗ Mass document upload and transaction confirmation
- ✗ Electronic signatures for Attorneys and indicating which docs are unsigned

Notifications

- ✗ Turn notifications on/off by case type / procedure
- ✗ Override other settings for urgent notifications (rarely needed)

Consideration for Post-MVP

Court's Preferences

- ✗ Specific preferences and procedures from Judges
- ✗ Guidance for when and how to Lodge a document
- ✗ Access to a viewable library of sample orders / documents which please the Court

Data Sharing

- ✗ Data feed directly from the USTC via an API / CSV file to eliminate manual entry
- ✗ Text-based, exportable reports (or a data feed) for cross-referencing and automation
- ✗ Document type for documents served by the Court (e.g. Order, Motion) - document taxonomy for an API or CSV dump of data
- ✗ Trial docket information

Appendix | IRS Facts

Additional Information

Document Management

- The IRS receives copies of every filing in PDF format and manually associates it with a case in their internal systems. It can be a week or more before new filings show up on the Routing Report, which notifies Field Offices of new filings within their jurisdiction
- Expert Witness documents may have 30-40 thousand pages of information
- Attorneys rarely use the USTC's system for research due to lack of content keyword search within documents

Equipment

- IRS staff typically access the USTC eFiling system using desktop and laptop computers in the office. Mobile phones are not considered secure enough to access this data
- IRS staff have scanners but are not in the habit of using them

Additional Information

Filings

- Most filings are usually one document with 0-3 attachments
- Most filings are prepared in Word and converted to PDF before filing
- Electronic signatures are applied in Adobe PDF or as an embedded image
- IRS paper service occurs at 3:00 pm daily; volume increases considerably at 2:00 pm
- Every filing transaction is followed by a confirmation page with the date and time of filing, which they download as a PDF and print for proof the deadline was met

Cases

- Cases can remain open for years, waiting for a decision to be issued after trial
- The IRS keeps archived cases for 10 years and then destroys them
- The majority of USTC cases are settled by the IRS Appeals Office
- In FY 2018, Chief Counsel received 25,463 USTC cases and closed 26,341 cases involving more than \$7.5 billion in disputed taxes and penalties

Questions | Come on, let us have 'em!